



U.S. Department
of Transportation

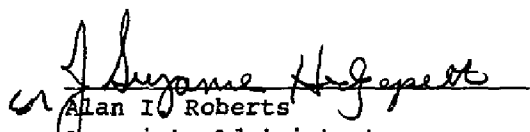
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6759 (PTE)
THIRD REVISION October 9, 1979

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 6759. The expiration date of the exemption for the party(ies) is February 28, 1993.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 07 1992

(DATE)

Dist: FEWA

EXEMPTION HOLDER

APPLICATION DATE

ICI Explosives USA Inc.
Dallas, TX

May 8, 1992



DEPARTMENT OF TRANSPORTATION
RESEARCH AND SPECIAL PROGRAMS ADMINISTRATION
WASHINGTON, D.C. 20590

DOT-E 6759
(THIRD REVISION)

1. E. I. du Pont de Nemours and Company, Inc., Wilmington, Delaware, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of Class A or B explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of Class A or B explosives in an IME 22 container or compartment on the same vehicle with non-mass detonating blasting caps and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Atlas Powder Company, Dallas, Texas - PTE-1.
Hercules Incorporated, Wilmington, Delaware - PTE-2.
IMC Chemical Group, Incorporated, Allentown, Pennsylvania - PTE-3.

2. BASIS. This exemption is based on E. I. du Pont de Nemours and Company's application dated June 15, 1979, submitted in accordance with 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Atlas Powder Company's applications dated July 24, 1979.
Hercules Incorporated's application dated June 8, 1979.
IMC Chemical Group, Incorporated's application dated June 19, 1979.

3. HAZARDOUS MATERIALS (Descriptor and class). Electric blasting caps, certain other non-mass detonating blasting caps and various Class A or B explosives, all of which must be specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR) prior to the first shipment - Classed as Class A or B explosives, as appropriate.

4. PROPER SHIPPING NAME (49 CFR 172.101). As appropriate.

5. REGULATION AFFECTED. 49 CFR 177.835(g)(2); 173.87, only insofar as pertaining to the restriction against packing explosives in the same outside package with each other.

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. The Class A and B explosives with no blasting caps included must be packaged as specified in 49 CFR 177.835(g)(2) in addition to the packaging prescribed in Part 173 for Class A or B explosives as appropriate. The efficiency of the compartment or container must be equal to or greater than that established for a similar package of equal size containing blasting caps. The blasting caps (both kinds) may not be packaged with the Class A or B explosives.

SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Instead of the markings required by Appendix B, Part 107, the cargo carrying body of the transport vehicle may be marked on both sides "DOT-E 6759," in letters at least two inches high.

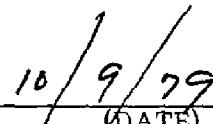
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. August 31, 1981.

Issued at Washington, D.C.:



Alan L. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau



(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: B of E, FHWA